

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 2628

By: Harris

AS INTRODUCED

An Act relating to civil procedure; amending 12 O.S. 2021, Section 2702, which relates to testimony by experts; requiring proponent make certain demonstration to court; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 12 O.S. 2021, Section 2702, is amended to read as follows:

Section 2702. If scientific, technical or other specialized knowledge will assist the trier of fact to understand the evidence or to determine a fact in issue, a witness qualified as an expert by knowledge, skill, experience, training, or education may testify in the form of an opinion or otherwise, if the proponent demonstrates to the court that it is more likely than not that:

1. The testimony is based upon sufficient facts or data;
2. The testimony is the product of reliable principles and methods; and

1 3. The ~~witness has applied~~ expert's opinion reflects a reliable
2 application of the principles and methods ~~reliably~~ to the facts of
3 the case.

4 SECTION 2. This act shall become effective November 1, 2025.

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